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CASE #	CASE NAME	HEARING NAME
CVME2515647	HERTENSTEIN vs BRADLEY ROAD HOLDINGS LLC	MOTION FOR PREFERENTIAL TRIAL SETTING

Tentative Ruling:

Summary of Ruling: The Court grants Plaintiff's Motion for Trial Preference Status.

Factual/Procedural Context

This is an elder abuse/neglect and negligence action brought by Plaintiff Catherine Hertenstein ("Plaintiff") against Defendants Bradley Road Holdings LLC dba Sun City Gardens ("Sun City Gardens") and California Senior Living Management LLC (collectively, "Defendants"). On November 26, 2025, Plaintiff filed her Complaint against Defendants, asserting causes of action for (1) elder abuse and neglect and (2) negligence. Plaintiff alleges that she was admitted to Defendants' residential facility on February 16, 2023, and suffered at least eight documented falls during her residency, including an eighth fall on April 25, 2025. (Compl. ¶¶ 13–17.) Plaintiff now seeks an order setting trial within 120 days if preference is granted.

Plaintiff filed the instant motion for trial preference under CCP § 36(a) on the grounds that she is 100 years old and that her health is such that trial preference is necessary to prevent prejudicing her interest in the litigation. Plaintiff's counsel represents that Plaintiff suffers from multiple serious medical conditions — including a recent left femur fracture requiring open reduction and internal fixation surgery on April 28, 2025, dementia, and spinal stenosis — and that Plaintiff is bedbound and requires extensive assistance with activities of daily living. Plaintiff requests that the Court grant trial preference status and set trial no later than 120 days after the granting of the motion, with any continuance made subject to section 36(f).

Defendants oppose the motion, arguing that Plaintiff failed to provide clear and convincing medical documentation establishing substantial medical doubt of her survival beyond six months as required by section 36(d), because her showing rests on counsel's conclusory declaration and medical records that address only her condition without opining on life expectancy. They further contend that granting preference would violate their due process rights, as the stay was only recently lifted following the ruling on their motion to compel arbitration and discovery has not yet commenced, leaving inadequate time to complete discovery, secure experts, and prepare for trial, and forcing them to forgo a potentially dispositive summary judgment motion. Defendants add that accelerating the trial date will not address Plaintiff's declining health and would merely expedite a process unlikely to conclude before her condition deteriorates further.

Plaintiff replies that Defendants apply the wrong legal standard by citing section 36(d) rather than section 36(a). Plaintiff argues section 36(a) does not require clear and

convincing medical documentation of imminent death, but only that her health is such that preference is necessary to prevent prejudice. Plaintiff contends that Defendants' due process argument fails because courts have repeatedly held that incomplete discovery does not defeat the mandatory right to preference under section 36(a).

Analysis

1. Legal Standard

CCP § 36(a) provides: "A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings":

- (1) The party has a substantial interest in the action as a whole and
- (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

(CCP § 36(a).) The purpose of section 36 is "to avoid an irrevocable loss of a qualifying plaintiff's substantive right to a trial during his or her lifetime and to potential recovery of damages that would not survive plaintiff's pretrial death." (*Koch-Ash v. Sup. Ct.* (1986) 180 Cal.App.3d 689, 694.) A motion for trial preference under subdivision (a) does not require a doctor's declaration and "may be supported by nothing more than an attorney's declaration based upon the information and belief as to the medical diagnosis and prognosis of any party." (*Fox v. Sup. Ct.* (2018) 21 Cal.App.5th 529, 534 [citation omitted] [explaining that an attorney declaration under CCP § 36.5 can consist entirely of hearsay and conclusions]; see *also* CCP § 36.5 [affirming that an attorney declaration may form the basis of the motion].)

The application of CCP § 36(a) does not violate the power of trial courts to regulate the order of their business. Mere inconvenience to the court or to other litigants is irrelevant. (*Rice v. Sup. Ct.* (1982) 136 Cal.App.3d 81, 89–94.) Failure to complete discovery or other pre-trial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under section 36(a). The trial court has no power to balance the differing interest of opposing litigants in applying the provision. The express legislative mandate for trial preference is a substantive public policy concern which supersedes such considerations. (*Koch-Ash, supra*, 180 Cal.App.3d at 698–99.) Accordingly, section 36(a) is mandatory and absolute in its application in civil cases whenever the litigants are 70 years old. (*Id.* at 694.)

2. Merits

Plaintiff moves for trial preference under CCP § 36(a). As set forth above, section 36(a) requires no doctor's declaration and may be supported by counsel's declaration on information and belief as to the medical diagnosis and prognosis of the party. (*Fox, supra*, 21 Cal.App.5th at 534.) The relevant standard under subdivision (a) is "more open-ended" than subdivision (d): "The issue under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that she might as well be

absent when trial is called. Provided there is evidence that the party involved is over 70, **all subdivision (a) requires is a showing that the party's 'health . . . is such that a preference is necessary to prevent prejudicing h[er] interest in the litigation.'**" (*Id.* [emphasis added].) "Where a party meets the requisite standard for calendar preference under subdivision (a), preference must be granted. **No weighing of interests is involved.**" (*Id.* at 535 [emphasis added].)

Here, Plaintiff has sufficiently complied with the requirements under CCP § 36(a). Plaintiff has presented evidence showing that she was born on May 26, 1926, and is currently 100 years old, and that she has a substantial interest in this litigation, as she is the sole plaintiff seeking damages for elder abuse/neglect and negligence arising from her residency at Sun City Gardens. Plaintiff has submitted the declaration of her counsel, Mr. Reza Sobati, along with copies of her admission documentation and hospital progress notes listing her diagnoses, including a fracture of the left femur, muscle weakness, anemia, dementia without behavioral disturbance, irritable bowel syndrome, spinal stenosis, subluxation of C7/T1 cervical vertebrae, accidental fall, DNI/DNR status, and closed fracture of the left hip. (Sobati Decl. ¶ 2, Ex. A.)

The declaration further states that, three days after her final fall at the facility, Plaintiff underwent left femur fracture open reduction and internal fixation (ORIF) surgery on April 28, 2025. (*Id.* at ¶ 3, Ex. B.) In the declaration, Plaintiff's counsel stated, on information and belief based upon information provided by Plaintiff's daughter and Power of Attorney, Kathy Liso, and Plaintiff's medical records, that Plaintiff continues to suffer from various conditions, requires extensive assistance with activities of daily living, and is bedbound. (*Id.* at ¶ 4.) On this record, the Court should find that the interests of justice will be served by granting this motion.

Defendants nonetheless argue that granting preference would violate due process because discovery has not yet commenced and they would be forced to forgo summary judgment. Yet, under the mandatory preference provisions, the "[f]ailure to complete discovery or other pre-trial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36." (*Swaites v. Sup. Ct.* (1989) 212 Cal.App.3d 1082, 1085.) "The trial court has no power to balance the differing interest of opposing litigants in applying the provision." (*Id.*) Therefore, Defendants' due process argument is without merit.

Defendants' further argument that acceleration is unnecessary because a preference trial does not guarantee Plaintiff's survival misstates the standard. The issue under section 36(a) is not whether the litigant might die or become incapacitated before trial, but only whether her health is such that preference is necessary to prevent prejudicing her interest in the litigation. (*Fox, supra*, 21 Cal.App.5th at 534.) Because Plaintiff has made that showing, preference is mandatory and no weighing of interests is permitted. (*Id.* at 535.)

Accordingly, for the foregoing reasons, Plaintiff's motion for preferential trial is granted. The Court and parties will select the trial date at the hearing on July 20, 2026.